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General Council

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**OPTIONS TO ACKNOWLEDGE PROGRESS AND PROVIDE FURTHER INSTRUCTIONS FOR
THE "REFORM BY DOING" WORK AT MC13**

COMMUNICATION FROM CHINA

The following communication, dated 20 November 2023, is being circulated at the request of the delegation of China.

1. WTO Members agreed at MC12 to "work towards necessary reform of the WTO" and "improve all its functions". As part of the reform exercise, WTO Councils, Committees and Negotiating Bodies (WTO Bodies) are tasked to see what had been done and explore ways to improve their functioning to better deliver on respective mandates - "reform by doing".

2. In the past months, WTO Bodies, within respective functionalities, have conducted discussions on possible procedural improvements. Also, the exchange and sharing of experience and good practices among different bodies have been undertaken. Further, the Secretariat has kept mapping out the "reform by doing" work and updated the table in [JOB/GC/345](#) ahead of regular sessions of the General Council.

3. Recognizing the differences in the nature of WTO Bodies, measures applicable to each body may differ in light of respective mandates. Nevertheless, after reviewing practices of different bodies, it is encouraging that the following measures, indicative and non-exhaustive though, have been or are to be implemented in many WTO bodies:

- 1) Calendar of meetings;
- 2) Clustering of meetings;
- 3) Chair announcing the next two to three speakers;
- 4) Annotated Agenda;
- 5) Online availability in all three WTO languages of all reports and documents for consideration during the meeting;
- 6) Organization of informal meetings, including the possible alignment in procedures with formal meetings;
- 7) E-Agenda which also allows Members to submit statements online;
- 8) Virtual Participation in Meetings;
- 9) Circulation of minutes as quickly as possible after the meetings, within three weeks preferably;
- 10) Introductory sessions for new delegates;

11) A dedicated web-page host training on the functioning of a body;

4. Meanwhile, Ministers at MC12 instructed the General Council and its subsidiary bodies to "review progress, and consider decisions, as appropriate, to be submitted to the next Ministerial Conference". It is therefore mandated and necessary that the "reform by doing" work, these incremental yet collectively significant institutional improvements, be incorporated into the MC13 deliverables package.

5. Further, taking note of the efforts made by various WTO Bodies, Members at the Senior Officials Meeting on October 23-24 called for the reform progress through reform by doing "be acknowledged and blessed including by Ministers at MC13", as indicated in [WT/GC/259/Rev.1](#).

6. This paper invites Members to reflect on the improvements having been made so far in various WTO Bodies, and explore possible ways to make this area a MC13 outcome, reiterating Members' support of the "reform by doing" process and provide further instructions on its advancement at the post-MC13 era.

7. Therefore, it is suggested that a "reform by doing" paragraph be included in the MC13 outcome document, which may read: Members acknowledge the progress and recognize its value in the "reform by doing" work made so far. These incremental yet collectively significant institutional improvements will not only enhance the efficiency and effectiveness of WTO's daily operation, but also facilitate Members' substantive participation in deliberating important trade issues. The Secretariat is encouraged to update the compilation of practices and measures which different bodies have applied or consider to apply. The General Council and its subsidiary bodies will continue the work by exploring more crosscutting procedural improvements that all WTO Bodies could consider implementing as appropriate or if feasible, and report progress to the next Ministerial Conference.

8. Alternatively, if Members wish to highlight the importance they attach to this issue, a standalone outcome may be explored. By doing so, Ministers, in a standalone document, acknowledge and bless the progress made so far and provide further instructions. The document may contain a list of measures that may be considered to be applied horizontally (as indicated in paragraph 3 of this document, or in paragraph 1.11 of [JOB/GC/359](#)), and instruct further work of conducting discussions to add more measures in the list.

9. No matter which option is approached, the "reform by doing" work should be reflected in the package of MC13 outcomes. The WTO needs to showcase its reform is ongoing, and has delivered, as mandated.
